

25NWCV04077 25NWCV04077

County: los-angeles

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Case Number: 25NWCV04077 Hearing Date: July 10, 2026 Dept: P

ADAM GUILLEN v. MAIN

ELECTRIC SUPPLY COMPANY, LLC

CASE NO.: 25NWCV04077

HEARING: 07/10/2026 @

9:30 AM

#15

TENTATIVE ORDER

I.

Proposed Plaintiff-In-Intervention Insurance

Company of the West's motion for leave to intervene is GRANTED.

II.

Insurance Company of the West is ORDERED

to file and serve its complaint-in-intervention attached to its moving papers

within 5 days of this Order

Moving party to give notice.

Proposed Intervenor Insurance Company of the West (Proposed Intervenor) moves to intervene in this action.

Background

On November 18, 2025, Plaintiff Adam Guillen (Plaintiff) filed this personal injury action against Defendant Main Electric Supply Company, LLC (Defendant) and Does 1 through 10. The complaint alleges that on December 21, 2023, Plaintiff was making a delivery as part of his employment at 8146 Byron Rd., Whittier, CA 90606 (Subject Premises) owned by Defendant. While following Defendant's unloading procedure, a steel bar fell and struck Plaintiff on his head, resulting in injuries. The complaint asserts two causes of action: (1) general negligence and (2) premises liability.

Legal Standard

An intervention takes place when a nonparty becomes a party to an action by "[j]oining a plaintiff in claiming what is sought by the complaint, "[u]niting with a defendant in resisting the claims of a plaintiff," or "[d]emanding anything adverse to both a plaintiff and a defendant." (Code Civ. Proc., § 387, subd. (b)(1)-(3).) A nonparty petitioning for leave to intervene must include a copy of the proposed complaint or answer in intervention and state the grounds for the intervention. (Code Civ. Proc., § 387, subd. (c).)

The Court shall permit an intervention if "[a] provision of law confers an unconditional right to intervene" or "[t]he person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Proc., § 387, subd. (d)(1)(A)-(B).)

Alternatively, the Court may "permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code Civ. Proc., § 387, subd. (d)(2).)

Discussion

Proposed Intervenor moves to intervene in this action as this action arises out of an injury which occurred while Plaintiff was in the course and scope of his employment with Proposed Intervenor's insured, CoFreight, Inc. (Employer). This motion is unopposed.

Proposed Intervenor moves on the grounds that it has paid workers' compensation benefits on behalf of its insured's employee and is now subrogated to the rights and claims of its insured pursuant to Labor Code section 3850.

Labor Code sections 3852 and 3853 provide that an employer against whom a claim for workers' compensation damages was made may join in an action against a third party arising out of the incident for which the workers' compensation payment was made. (Lab. Code, §§ 3852, 3853.) "[Labor Code] [s]ection 3853 states that when an action is brought against a third party by either the employer or the employee, 'the other may, at any time before trial on the facts, join as party plaintiff.'" (Jordan v. Superior Court (1981) 116 Cal.App.3d 202, 206 [quoting Lab. Code, § 3853].) An employer includes the employer's insurer. (Lab. Code, § 3850, subd. (b).)

As the workers' compensation insurer for Plaintiff's Employer, Proposed Intervenor establishes a statutory right to intervene.

Proposed Intervenor's motion for leave to file a complaint-in-intervention is GRANTED.

Proposed Intervenor is ORDERED to file and serve its complaint-in-intervention attached to its moving papers within 5 days of this Order.